

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 8

Hon. Frederick S. Chung (covering for Hon. Elizabeth C. Peterson)

Rachel Tien, Courtroom Clerk
191 North First Street, San Jose, CA95113

To contest the tentative ruling, call (408) 808-6856 before 4:00 P.M.

The tentative ruling will become the ruling of the court if timely notice has not been given. (See CRC 3.1308(a)(1) & Local Rule 8.E.)

Court Reporters are not provided by the court. Please consult the court's website, www.scsccourt.org, for the rules, policies, and required forms for appointment of privately-retained court reporters.

- **Parties can appear either in person or remotely.** All remote appearances must be made through Unicorn Digital Platform (UDC), unless otherwise arranged with the court. Please go to https://www.scsccourt.org/general_info/ra_teams/video_hearings_teams.shtml to find the appropriate link.
- As a reminder, state and local Court Rules prohibit recording of court proceedings without a court order. This prohibition applies while in the courtroom and while appearing remotely on any platform.

LAW AND MOTION TENTATIVE RULINGS

DATE: September 16, 2026

TIME: 1:30 P.M.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	22CV407773	Kikishia Burrus et al. v. The Elevance Health Companies, Inc. et al.	Click on LINE 1 or scroll down for ruling.
LINE 2	22CV407883	David Jermaine Sanders v. 360 Degree Customer, Inc.	Click on LINE 2 or scroll down for ruling.
LINE 3	23CV412452	Koangwoo Choi v. Allfo One Korea, LLC et al.	Click on LINE 3 or scroll down for ruling.
LINE 4	25CV460326	Sharon Kachadoorian v. Equity Residential Management, L.L.C. et al.	Click on LINE 4 or scroll down for ruling.
LINE 5	26CV486054	Rodolfo Bobadilla v. MobileOne, LLC	Click on LINE 5 or scroll down for ruling in lines 5-6.
LINE 6	26CV486054	Rodolfo Bobadilla v. MobileOne, LLC	Click on LINE 5 or scroll down for ruling in lines 5-6.

Calendar Line 1

Case Name: *Kikishia Burrus et al. v. The Elevance Health Companies, Inc. et al.*

Case No.: 22CV407773

This is a putative class and representative action arising from alleged wage and hour violations. In the operative Amended Consolidated Complaint (“Operative Complaint”) against defendants The Elevance Health Companies, Inc. and Elevance Health, Inc. (“Defendants”), plaintiffs Kikishia Burrus, Ivan Alvarado, and Gladys E. Boccongella (“Plaintiffs”) allege failures to pay minimum and overtime wages for all hours worked, to provide compliant meal and rest periods, to pay accrued vacation and PTO wages, to provide paid sick time, to indemnify necessary business expenses, to timely pay wages during employment and at separation, and to provide accurate itemized wage statements, together with unlawful deductions, unfair competition, and related penalties under the Private Attorneys General Act (“PAGA”).

Plaintiffs move for preliminary approval of the settlement reached by the parties, and the motion is unopposed. As discussed below, the court GRANTS the motion for preliminary approval and, subject to the modifications to the class notice set forth in Part II.E, sets a final approval hearing for March 24, 2027 at 1:30 p.m. in Department 19.

I. Legal Standard

“In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) At preliminary approval, the question is whether the settlement is within the “range of reasonableness” such that notice to the class and a formal fairness hearing are warranted. (*Wershba, supra*, 91 Cal.App.4th at pp. 234–235; *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.) The most important factor is the strength of the plaintiffs’ case on the merits, balanced against the amount offered in settlement, and the court must be provided with basic information about the nature and magnitude of the claims sufficient to allow an understanding of the amount in controversy and the realistic range of outcomes. (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130, 133.)

Similar to its review of class action settlements, a trial court must also “review and approve” any settlement of an action filed under PAGA. (Lab. Code, § 2699, subd. (l)(2).) The trial court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529 (*Carrington*); *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213 (*Amaral*).)

II. Discussion

A. Provisions of the Settlement

This case has been settled on behalf of the following class:

All persons employed by Defendants in California as hourly-paid, non-exempt employees during the Class Period [August 18, 2018 through December 11, 2024].

(Declaration of James H. Clark (“Clark Decl.”), Ex. 1 (“Agreement”), § 1.5.) The settlement includes a subset PAGA group of Aggrieved Employees, defined as all current and former non-exempt employees employed by Defendants in California during the PAGA Period [August 18, 2021 through December 11, 2024]. (*Id.* at §§ 1.4, 1.31.) Defendants estimate approximately 7,100 Class Members who worked approximately 1,322,119 workweeks, at an average rate of \$30.64 per hour, with the agreement reflecting a current estimate of approximately 8,302 Class Members and 1,370,742 workweeks. (*Id.* at § 8.)

Defendants will pay a non-reversionary Gross Settlement Amount of \$6,625,000.00. The Gross Settlement Amount includes attorney’s fees of up to one-third of the fund (\$2,208,333.33); litigation expenses of up to \$50,000.00; a PAGA allocation of \$200,000.00 (75 percent of which (\$150,000.00) will be paid to the LWDA and 25 percent of which (\$50,000.00) will be paid to Aggrieved Employees as individual PAGA payments); service payments of up to \$9,900.00 each to Plaintiffs Alvarado and Boccongella (\$19,800.00 total); and settlement administration costs of up to \$45,000.00. (Agreement, §§ 1.22, 3.2.) After these deductions, the net settlement amount will be distributed to the participating Class Members on a pro rata basis according to workweeks worked during the Class Period, with no claim form required. (*Id.* at § 3.2.4.)

The Agreement provides that ILYM Group, Inc. (“ILYM”) will serve as the neutral entity to administer the settlement. (Agreement, § 1.2.) The court appoints ILYM as the settlement administrator.

The Agreement further provides that funds from settlement checks that remain uncashed after the void date will be paid to a *cy pres* recipient to be selected by mutual agreement of the parties, subject to the requirements of Code of Civil Procedure section 384, subdivision (b). (Agreement, § 4.4.3.) Section 384 mandates that unclaimed or abandoned class members’ funds be given to nonprofit organizations or foundations that will benefit the class or similarly situated persons, to child advocacy programs, or to nonprofit organizations providing civil legal services to the indigent. Because the Agreement does not yet identify the *cy pres* recipient, and because the class notice must accurately state the disposition of unclaimed funds, the parties shall identify the proposed *cy pres* recipient and conform the class notice to the Agreement before mailing, as set forth in Part II.E below.

In exchange for the settlement, the participating Class Members agree to release Defendants and related parties from all claims that were or reasonably could have been alleged based on the facts stated in the Operative Complaint arising during the Class Period, including claims for unpaid minimum, straight-time, and overtime wages; meal and rest period violations; unpaid vacation and PTO wages; sick pay; unreimbursed business expenses; wage statement and waiting time penalties; and unfair competition. (Agreement, § 5.1.) Aggrieved

Employees will release all PAGA claims for penalties arising during the PAGA Period that were or reasonably could have been alleged based on the facts stated in the Operative Complaint and the PAGA notice. (*Id.* at § 5.2.) The release provisions are tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.) Because the Operative Complaint pleads no claim under the federal Fair Labor Standards Act and the class is certified on an opt-out basis, the release shall not be construed to release any FLSA claim, and the parties shall confirm as much or shall strike the reference to “related or corresponding federal laws” in section 5.1.

B. Fairness of the Settlement

Plaintiffs contend that the Agreement meets the standards for preliminary approval. (Motion, pp. 9–24.) Plaintiffs’ counsel states that the parties reached the settlement through arm’s length negotiations facilitated at a September 12, 2024 mediation with Michael J. Loeb, an experienced wage-and-hour mediator. (Declaration of Shuan Setareh (“Setareh Decl.”), ¶ 22; Clark Decl., ¶ 12.) Before mediation, Defendants produced their wage and hour policies, timekeeping and payroll data, and workforce and workweek information, which Plaintiffs’ counsel analyzed with the assistance of an expert. (Motion, pp. 3, 11; Clark Decl., ¶¶ 10–13; Setareh Decl., ¶¶ 20–21.)

According to the analysis of Plaintiffs’ counsel and counsel’s expert, and after applying a discount of approximately 76 percent to reflect the risk that a substantial majority of workweeks were worked by employees who had signed arbitration agreements, together with further discounts for the risks of non-certification and of an adverse result on the merits, the class claims (excluding PAGA) are valued at approximately \$35,865,722.94, which counsel characterizes as the maximum potential class recovery. (Motion, pp. 13–17; Clark Decl., ¶¶ 15–23.) Plaintiffs’ counsel separately estimates the realistic PAGA exposure at approximately \$11,994,778.17. (Motion, pp. 18–19; Clark Decl., ¶ 24.) The Gross Settlement Amount of \$6,625,000.00 represents approximately 19 percent of the class figure as calculated by counsel. (Motion, p. 17.) Mindful that a settlement is a compromise that need not afford the full measure of recovery that might be obtained at trial (*Wershba, supra*, 91 Cal.App.4th at p. 250), the court is satisfied for preliminary approval purposes that the settlement falls within the range of reasonableness that warrants notice to the class and a final fairness hearing. As set forth in Part II.C, the court will undertake a more searching review of the valuation and of the overall fairness of the settlement, informed by any objections and by counsel’s further submissions, at the final approval hearing.

As for the PAGA allocation, the \$200,000.00 allocated to PAGA is measured against counsel’s estimated PAGA exposure of approximately \$11,994,778.17. (Motion, pp. 18–19.) A PAGA settlement may be substantially discounted, and courts routinely approve PAGA allocations below the statutory maximum where, as counsel represents here, the maximum penalties are subject to reduction and to defenses regarding notice, stacking, and manageability. (*Carrington, supra*, 30 Cal.App.5th at p. 529; *Amaral, supra*, 163 Cal.App.4th at pp. 1209, 1213.) The record reflects that the LWDA was served with notice of the proposed settlement. (Clark Decl., Ex. 2.) Having independently reviewed the PAGA allocation, the court finds it within the range of reasonableness for preliminary approval.

C. Service Award, Fees and Costs

Plaintiffs Alvarado and Boccongella each seek a service award of up to \$9,900.00 and have provided declarations describing their participation in this action, including their efforts in investigating the claims, responding to discovery, assisting with mediation, and reviewing the settlement. (Motion, pp. 29–30; Alvarado Decl., ¶ 9; Boccongella Decl., ¶ 7.) The court is inclined to approve the service awards in the amounts requested and will issue its determination at the final approval hearing.

Class counsel will seek attorney’s fees of up to one third of the Gross Settlement Amount (\$2,208,333.33) and litigation expenses of up to \$50,000.00. (Motion, p. 27; Agreement, § 3.2.2.) The requested one-third fee is at the benchmark that California courts commonly approve in wage-and-hour class actions, but the court will scrutinize the requested percentage, with the assistance of a lodestar cross-check, at the final approval hearing. Prior to the final approval hearing, class counsel shall submit lodestar information (including hourly rates and hours worked) sufficient to support the requested fee, as well as evidence of the actual litigation costs incurred and of the settlement administration costs.

D. Conditional Certification of Class

Plaintiffs request that the class be conditionally certified for purposes of the settlement. Code of Civil Procedure section 382 authorizes certification of a class “when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court.” For settlement purposes, courts apply a less stringent certification standard because the management problems inherent in a litigated class action need not be confronted.

Plaintiffs state that there are approximately 7,100 Class Members who can be identified from Defendants’ records, satisfying numerosity. (Motion, pp. 25–26.) The court finds that there are common questions regarding whether the Class Members were subjected to uniform wage and hour policies and practices, that the named Plaintiffs’ claims are typical of those of the class, and that the proposed class may be conditionally certified for settlement purposes. The court appoints Ivan Alvarado and Gladys E. Boccongella as class representatives, and appoints the Setareh Law Group, Lavi & Ebrahimian, LLP, and E&L, LLP as class counsel, in each case for purposes of settlement only. (Motion, p. 3.)

E. Class Notice

California Rules of Court, rule 3.769(f), provides that notice of the final approval hearing must be given to the class members in the manner specified by the court, and that the notice must contain an explanation of the proposed settlement and the procedures for class members to follow in filing written objections and in arranging to appear at the settlement hearing.

Here, the form of the notice describes the lawsuit, explains the settlement, states the settlement amounts, and informs Class Members of their estimated individual share and of the procedures for opting out of or objecting to the settlement. (Agreement, Ex. A.) The notice is generally adequate, but it may not be disseminated in its current form. The parties shall make the following modifications before the notice is mailed:

1. Deductions. The notice shall separately state the attorney's fees (up to \$2,208,333.33) and the litigation expenses (up to \$50,000.00), rather than describing the one-third figure as covering both, so that the notice accurately discloses all amounts to be deducted from the fund. (Agreement, § 3.2.2; Motion, p. 27.)
2. Disposition of unclaimed funds. The proposed notice states at section 3.5 that funds from uncashed settlement checks will be deposited with the California Controller's Unclaimed Property Fund. The notice shall state a single, correct destination for funds from uncashed checks that conforms to Agreement section 4.4.3 and shall identify the *cy pres* recipient.
3. Opt-out procedure. The notice shall delete the requirement that a Class Member provide a Social Security number in order to request exclusion, conforming the opt-out procedure to Agreement section 7.5.1, which requires only the member's name, address, and email address or telephone number.
4. Completion of blanks and dates. The notice shall insert the individual estimated Class and PAGA payment amounts and workweeks, the date, time, department, and address of the final approval hearing, and the settlement administrator's name and contact information, and shall correct the year of the final approval hearing.

The following language regarding the final approval hearing shall be added to the notice:

Class members may appear at the final approval hearing in person or remotely using the link for Department 19, and should review the remote appearance instructions beforehand:

<https://santaclara.courts.ca.gov/online-services/remote-hearings>

Class members who wish to appear remotely are encouraged to contact class counsel at least three days before the hearing, if possible, so that potential technology or audibility issues can be avoided or minimized.

On the condition that the parties make the above modifications to the notice prior to its mailing, the notice is approved.

III. Conclusion

The court GRANTS the motion for preliminary approval. For settlement purposes only, the court conditionally certifies the Class defined above, appoints Ivan Alvarado and Gladys E. Boccongella as class representatives, appoints the Setareh Law Group, Lavi & Ebrahimian, LLP, and E&L, LLP as class counsel, and appoints ILYM Group, Inc. as settlement administrator. The court approves the class notice subject to the modifications set forth in Part II.E above and sets a final approval hearing for March 24, 2027 at 1:30 p.m. in Department 19.

Plaintiffs shall file the motion for final approval along with supporting documentation no later than 15 court days before the final approval hearing, unless the court orders otherwise.

Plaintiffs shall prepare the order.

- oo0oo -

Calendar Line 2

Case Name: *David Jermine Sanders v. 360 Degree Customer, Inc.*

Case No.: 22CV407883

I. Introduction

Plaintiff David Jermine Sanders moves for entry of default judgment against defendant 360 Degree Customer, Inc. on the Second Amended Complaint (“SAC”). Plaintiff seeks \$55,768.16, consisting of \$47,468.00 in damages and penalties, \$2,524.04 in attorney’s fees, and \$5,776.12 in costs. (Plaintiff’s Memorandum of Points and Authorities (“MPA”), pp. 1, 12.) The court GRANTS the motion in part and enters judgment in the reduced amount of \$42,604.76. The court reduces the meal and rest period premiums, which the motion incorrectly doubles; strikes the business expense item, which the SAC does not demand; and allocates the penalties under the Private Attorney General Act (“PAGA”) between the Labor and Workforce Development Agency (“LWDA”) and Plaintiff, as the statute requires. Parts IV and V below explain these corrections.

II. Background

Plaintiff worked for Defendant as a non-exempt paraprofessional from approximately March 2021 to December 2021 at \$28.00 per hour, typically five days per week and at least eight hours per day. (SAC, ¶ 8; Declaration of David Jermine Sanders (“Sanders Decl.”), ¶¶ 2–3.) The SAC pleads nine causes of action for minimum wages, overtime, meal periods, rest periods, business expense indemnification, waiting time penalties, wage statement penalties, unfair competition, and PAGA civil penalties. (SAC, pp. 1–2.) The court has certified no class, and Plaintiff proceeds on his individual claims together with PAGA penalties.

Plaintiff could not personally serve Defendant. After denying service by publication on May 3, 2024, the court authorized service through the California Secretary of State on April 3, 2025. Defendant did not respond, and the clerk entered default on July 15, 2025. Plaintiff dismissed DOES 1 through 10 on February 18, 2026, leaving Defendant as the sole remaining party. Plaintiff supports the present motion with his own executed declaration and that of attorney Enzo Nabiev.

III. Standard

By defaulting, Defendant admits the material, well-pleaded allegations of the SAC that establish liability. (*Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267, 281.) Defendant does not admit the amount of unliquidated damages, so Plaintiff must prove up his damages with competent evidence. The court awards an amount “as appears by the evidence to be just”; the court awards only what the law and the evidence support, even when the complaint demands more. (Code Civ. Proc., § 585, subd. (b); *Johnson v. Stanhiser* (1999) 72 Cal.App.4th 357, 361.) A default judgment may not exceed the amount the complaint demands. (Code Civ. Proc., § 580, subd. (a) [“the relief granted to the plaintiff, if there is no answer, cannot exceed that demanded in the complaint”]; see also *Greenup v. Rodman* (1986) 42 Cal.3d 822, 824 [“in all default judgments the demand sets a ceiling on recovery”].)

IV. Discussion

A. Liability

The court has jurisdiction over Defendant through the authorized Secretary of State service. The clerk entered default, and Plaintiff has dismissed the Doe defendants. Defendant's default admits the SAC's liability allegations, including that Defendant failed to pay all wages owed, failed to provide compliant meal and rest periods, failed to timely pay final wages, failed to furnish accurate wage statements, and that Plaintiff exhausted his PAGA administrative remedies. (SAC, ¶¶ 15–20, 98–99.) Because the default establishes liability, the court turns to the amount.

B. Minimum Wages and Overtime: \$2,296.00 and \$4,592.00

Plaintiff declares that Defendant did not pay him for all hours worked and that he worked roughly 2.67 uncompensated overtime hours each week. (Sanders Decl., ¶ 3.) He seeks \$2,296.00 in unpaid wages and \$4,592.00 in overtime, each within the SAC's demand. (SAC, Prayer, ¶¶ 9, 15.) The court awards both amounts as requested.

C. Meal and Rest Periods: Reduced to \$5,740.00 Each

Plaintiff seeks \$11,480.00 for meal periods and \$11,480.00 for rest periods. Each figure multiplies 205 workdays by \$28.00 and then by two. (MPA, pp. 3, 6–7.) That doubling is incorrect. Labor Code section 226.7 provides one additional hour of pay for each workday on which a meal period is not provided, and one additional hour for each workday on which a rest period is not provided, not two of each. (Lab. Code § 226.7, subd. (c); *United Parcel Service, Inc. v. Superior Court* (2011) 196 Cal.App.4th 57, 69 [construing the statute as permitting up to two premium payments per workday: one for failure to provide one or more meal periods, and one for failure to provide one or more rest periods].) Plaintiff's own prayer seeks "one hour's pay" per category. (SAC, Prayer, ¶¶ 21, 27.) The court awards one premium per category: 205 days multiplied by \$28.00, or \$5,740.00 for meal periods and \$5,740.00 for rest periods. Because an employee may recover one meal premium and one rest premium for the same day, the combined award is \$11,480.00.

D. Business Expenses: No Award

Plaintiff seeks \$1,300.00 for unreimbursed cell phone expenses. (MPA, pp. 3, 7.) The court awards nothing on this item. The SAC demands no sum for business expenses; the prayer seeks only "reimbursement of business expenses as may be appropriate," and the body pleads no amount. (SAC, Prayer, ¶ 30; SAC ¶¶ 18, 86.) Because the complaint fails to provide notice of any amount, section 580 bars an award for this unspecified item. (*Greenup v. Rodman, supra*, 42 Cal.3d at pp. 829–830.)

E. Waiting Time and Wage Statement Penalties: \$6,720.00 and \$4,000.00

Defendant's default admits that it willfully failed to pay all final wages and knowingly failed to furnish accurate wage statements, and the SAC pleads the resulting injury at length. (SAC ¶ 20, subds. (a) to (h).) The Labor Code section 203 penalty equals Plaintiff's daily wage of \$224.00 (eight hours at \$28.00) for thirty days, or \$6,720.00. (*Mamika v. Barca* (1998) 68 Cal.App.4th 487, 493.) The section 226, subdivision (e) penalty reaches its

\$4,000.00 cap. Both amounts fall within the SAC's demand, and the court awards them. (SAC, Prayer, ¶¶ 38, 44.)

F. PAGA Penalties: \$5,600.00, Allocated 75/25

Plaintiff pleads that he served the required notice on Defendant and the LWDA on November 4, 2022 (LWDA case No. LWDA-CM-917981-22) and that more than sixty-five days passed without agency action. (SAC, ¶¶ 98–99.) The default admits exhaustion. The court awards the requested \$5,600.00 in civil penalties (fifty-six pay periods at \$100.00) but allocates them as required under former Labor Code section 2699, subdivision (i): 75 percent, or \$4,200.00, to the LWDA, and 25 percent, or \$1,400.00, to Plaintiff. (Former Lab. Code, § 2699, subd. (i); the 2024 PAGA amendments apply only to actions based on notices filed on or after June 19, 2024; see Stats. 2024, ch. 44 (Assem. Bill No. 2288); Stats. 2024, ch. 45 (Sen. Bill No. 92).) The judgment will so provide.

G. Unfair Competition: No Separate Award

The section 17200 claim seeks restitution of the same unpaid wages recovered above and supports no additional monetary award. (*Cortez v. Purolator Air Filtration Products Co.* (2000) 23 Cal.4th 163, 177–178.)

H. Attorney Fees: \$2,140.64

Labor Code section 1194 entitles Plaintiff to reasonable fees. Plaintiff applies a schedule of \$1,400.00 plus three percent of the amount by which the judgment exceeds \$10,000.00. (MPA, pp. 11–12.) Because a schedule fee follows the judgment amount, the court recalculates it on the corrected damages and penalties of \$34,688.00: \$1,400.00 plus three percent of \$24,688.00, or \$2,140.64.

I. Costs: \$5,776.12

Plaintiff claims \$5,776.12 in costs, consisting of \$1,496.17 in filing fees, \$3,421.50 in process server's fees, and \$858.45 in electronic filing charges. (Request for Court Judgment, item 7.) These costs are reasonable and were reasonably necessary to the litigation, which required repeated service efforts culminating in service through the Secretary of State. (Code Civ. Proc., § 1033.5.) The court awards costs as claimed. Costs are recoverable in addition to the SAC's damages demand and do not implicate section 580.

V. Conclusion

The court GRANTS Plaintiff's motion for entry of default judgment and will enter judgment against Defendant 360 Degree Customer, Inc. as follows:

Minimum wages (first cause of action)	\$2,296.00
Overtime (second cause of action)	\$4,592.00
Meal period premiums (third cause of action)	\$5,740.00
Rest period premiums (fourth cause of action)	\$5,740.00
Business expenses (fifth cause of action)	\$0.00
Waiting time penalties (sixth cause of action)	\$6,720.00
Wage statement penalties (seventh cause of action)	\$4,000.00

PAGA civil penalties (ninth cause of action)	\$5,600.00
Attorney's fees	\$2,140.64
Costs	<u>\$5,776.12</u>
Total judgment	\$42,604.76

As noted above, of the \$5,600 in PAGA civil penalties itemized here, the court allocates 75 percent (\$4,200.00) to the LWDA and 25 percent (\$1,400.00) to Plaintiff. Thus, the court awards **\$4,200 to the LWDA**. Combining Plaintiff's individual recovery with his twenty-five percent share of the PAGA penalties, the court awards **\$38,404.76 to Plaintiff**.

Plaintiff does not seek prejudgment interest, and the court awards none.

Plaintiff shall submit a conforming proposed judgment on Judicial Council form JUD-100 reflecting these amounts.

- oo0oo -

Calendar Line 3

Case Name: *Koangwoo Choi v. Allfo One Korea, LLC et al.*

Case No.: 23CV412452

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the court (Judge Zayner) granted preliminary approval on September 4, 2025. Before the court is Plaintiff's unopposed motion for final approval of the class and PAGA settlement. As discussed below, the court GRANTS the motion and sets a compliance hearing for June 30, 2027 at 2:30 p.m. in Department 19.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiff's case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.) A presumption of fairness applies where (1) the settlement is reached through arm's-length bargaining, (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently, (3) counsel is experienced in similar litigation, and (4) the percentage of objectors is small. (*Wershba, supra*, 91 Cal.App.4th at p. 245; *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1802.)

Labor Code section 2699, subdivision (1)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys General Act ("PAGA"). The court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum even where a claim succeeds at trial. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

A trial court has broad discretion to fix the amount of a reasonable attorney fee award in a class action, and California courts recognize two methods for calculating fees payable from a common fund: the percentage-of-recovery method and the lodestar method. (*Laffitte v. Robert Half International Inc.* (2016) 1 Cal.5th 480, 503–506 (*Laffitte*).) When counsel is compensated from a common fund, the trial court may award a percentage of the fund and use a lodestar calculation as a cross-check on the reasonableness of that percentage. (*Id.* at pp. 503, 506.) The lodestar is the number of hours reasonably expended multiplied by a reasonable hourly rate, which the court may adjust by a multiplier reflecting factors such as the contingent risk and the results obtained. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131–1134; *Serrano v. Priest* (1977) 20 Cal.3d 25, 48–49.)

II. Terms and Administration of Settlement

A. Settlement Terms

This case has been settled on behalf of the following class:

[A]ll non-exempt employees . . . who worked for Defendants during the Class Period [March 14, 2019 through the date of preliminary approval].

(Declaration of Brandon Brouillette in Support of Motion for Preliminary Approval, Ex. 1 (“Agreement”), ¶¶ 5–6.) The settlement includes a subset of Aggrieved Employees, defined as all non-exempt employees who worked for Defendants during the PAGA Period, March 28, 2022 through the date of preliminary approval. (*Id.* at ¶¶ 17–18.)

Defendants Allfo One Korea, LLC and All Fo One Korea Co., Ltd. (together “Allfo” or “Defendants”) will pay a non-reversionary gross settlement amount of \$200,000. (Agreement, ¶ 12.) The gross settlement is subject to an escalator clause providing that if the number of Class Members exceeds 222, Defendants will proportionally increase the gross settlement amount. (*Id.* at ¶ 56.) The gross settlement amount includes: attorney’s fees of up to one-third of the gross settlement (\$66,666.66); litigation costs not to exceed \$16,500; a class representative service award of up to \$10,000 to Plaintiff; settlement administration costs of up to \$9,500; and a PAGA allocation of \$12,000, of which 75 percent (\$9,000) is payable to the LWDA and 25 percent (\$3,000) is payable to Aggrieved Employees as individual PAGA payments. (*Id.* at ¶¶ 37–41.) After these deductions, the net settlement amount of \$85,333.34 is distributed to participating class members on a pro-rata basis according to the number of workweeks worked during the Class Period, and individual PAGA payments are distributed according to the number of PAGA-period pay periods worked. (*Id.* at ¶ 45.)

The Agreement provides that Phoenix Settlement Administrators (“Phoenix”) will serve as settlement administrator. (Agreement, ¶ 14.) The court confirms its appointment of Phoenix as settlement administrator. Any funds from settlement checks remaining uncashed after the void date will be transmitted to East Bay Community Law Center as the *cy pres* recipient, in accordance with Code of Civil Procedure section 384. The court approves the *cy pres* designation.

In exchange for the settlement, participating class members release Defendants and related parties from all claims that were alleged, or reasonably could have been alleged, arising from or related to the same set of operative facts set forth in the operative First Amended Complaint during the Class Period. (Agreement, ¶¶ 24, 26.) Aggrieved Employees release the PAGA claims for civil penalties that were or could have been brought based on the facts alleged in Plaintiff’s LWDA letter during the PAGA Period, or as alleged in the operative First Amended Complaint. (*Id.* at ¶¶ 25, 26.) The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Administration of Settlement

In his order granting preliminary approval, Judge Zayner conditionally certified the class for settlement purposes, appointed Phoenix as settlement administrator, and approved the form of Class Notice, subject to two modifications: that the notice be revised to clarify that

recipients have a third option to object (in addition to doing nothing or opting out), and that Section 6 be revised to remove the requirement that a class member provide a Social Security number in connection with a request for exclusion. Phoenix received a class data file on February 9, 2026 that identified 59 Class Members, ran a National Change of Address search on February 11, 2026, and mailed the Class Notice in English, Spanish, and Korean to those 59 Class Members on February 19, 2026. (Declaration of Taylor Mitzner (“Mitzner Decl.”), ¶¶ 3–5.) On May 11, 2026, Phoenix received a supplemental data file identifying 83 additional Class Members who had been omitted from the original class list, bringing the final class size to 142. (*Id.* at ¶ 6.) On July 2, 2026, Phoenix mailed the Class Notice to the 83 additional Class Members and mailed a corrected Class Notice to the original 59 Class Members. (*Id.* at ¶ 7.) Of the 142 notices, nine were returned without a forwarding address; Phoenix skip-traced those addresses, re-mailed two notices to updated addresses, and seven notices remain undeliverable. (*Id.* at ¶¶ 8–9.)

The deadline to request exclusion, object, or dispute workweeks was April 20, 2026 for the original Class Members and August 31, 2026 for the additional Class Members. (Mitzner Decl., ¶¶ 10–12.) As of the date of Mitzner’s declaration (August 19, 2026), Phoenix had received zero requests for exclusion, zero objections, and zero workweek disputes, so all 142 Class Members are Settlement Class Members—100 percent of the class. (*Id.* at ¶¶ 10–13.) The 142 Settlement Class Members worked a collective 3,952 workweeks during the Class Period, and the average individual class payment is approximately \$600.94, with a high of approximately \$3,411.61 and a low of approximately \$21.59. (*Id.* at ¶¶ 13, 16.) Because the class size of 142 does not exceed the escalator threshold of 222, the escalator clause is not triggered. (*Id.* at ¶ 14.) The 75 Aggrieved Employees worked a total of 2,096 pay periods during the PAGA Period, yielding an average individual PAGA payment of approximately \$40.00, with a high of approximately \$157.44 and a low of approximately \$1.43. (*Id.* at ¶ 17.)

The court notes several errors in the notice as mailed. First, the mailed Class Notice states that the Final Approval Hearing is set for June 3, 2026. That date is incorrect. Judge Zayner had continued the June 3, 2026 hearing to September 16, 2026 by order entered May 21, 2026, so by the time the notice was mailed on July 2, 2026 the stated hearing date had already been vacated and had passed. Second, Section 6 of the mailed notice continues to instruct class members to include a Social Security number with a request for exclusion, notwithstanding the court’s directive at preliminary approval that this requirement be removed. Third, the notice misidentifies the courthouse and its street address. The court has considered whether these errors undermine the adequacy of notice and concludes that they do not. The settlement is structured so that class members need do nothing to participate and receive payment; no exclusion or affirmative step is required to obtain relief. The notice expressly advised class members that the hearing date could change and directed them to verify the date on the court’s website or with Class Counsel. No class member requested exclusion, objected, or disputed workweeks, and it is unlikely that the Social Security number requirement deterred any class members from requesting exclusion. On this record, the court finds that the notice given satisfies the requirements of due process.

At preliminary approval, Judge Zayner found the settlement to be fair and reasonable. Given that there are no objections, the court finds no reason to deviate from that finding now. Accordingly, the court finds that the settlement is fair and reasonable for purposes of final approval.

III. Service Award, Attorney's Fees and Costs

Plaintiff seeks a class representative service award of up to \$10,000. An enhancement award compensates a named plaintiff for the expense or risk incurred in conferring a benefit on the class, and the amount must not be disproportionate to the time and energy the representative expended in pursuit of the litigation. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1394–1395.) The court finds that service award is justified here and the amount requested is reasonable. The court approves the service award in the amount requested.

Class Counsel seeks an attorney's fees award of \$66,666.66, which is one-third of the gross settlement and the maximum permitted under the Agreement. (Motion, pp. 2, 14; Declaration of Brandon Brouillette ("Brouillette Decl."), ¶ 24.) A one-third fee is within the range of percentage fees California courts approve in common fund wage and hour settlements. (See *Laffitte, supra*, 1 Cal.5th at pp. 503–506.) A lodestar cross-check confirms the reasonableness of the award. Class Counsel reports a lodestar of \$86,180 based on 108.0 hours of attorney time, at hourly rates that are within the range charged by attorneys of comparable skill and experience in this community. (Motion, p. 18; Brouillette Decl., ¶¶ 25–26 & Ex. 2.) The requested fee is therefore less than counsel's lodestar, representing a negative multiplier of approximately 0.77, and no fee enhancement is required to reach the requested amount. The benefits achieved by the settlement justify the requested fee. The court approves an attorney's fees award in the requested amount of \$66,666.66.

Class Counsel incurred \$16,729.95 in litigation costs, including court filing fees, service of process, postage, expert fees, and mediation fees, but seeks reimbursement of only \$16,500, the amount to which costs are capped under the Agreement. (Brouillette Decl., ¶¶ 46–47.) The court finds these costs were reasonably incurred and approves reimbursement of litigation costs in the amount of \$16,500.

The settlement provides for payment to Phoenix for its services as settlement administrator. Phoenix reports total administration costs of \$9,500, which increased from an earlier estimate of \$6,923.09 as a result of the second notice mailing required to reach the omitted Class Members. (Mitzner Decl., ¶ 19 & Ex. B.) The court finds the administration costs reasonable in light of the services performed and approves settlement administration costs in the amount of \$9,500.

IV. Conclusion

The court GRANTS Plaintiff's motion for final approval of the class and PAGA settlement. The court makes final its provisional certification of the class for settlement purposes, confirms Plaintiff Koangwoo Choi as class representative and Crosner Legal, PC as class counsel, and confirms the appointment of Phoenix Settlement Administrators as settlement administrator. The court approves: an attorney fee award of \$66,666.66; litigation costs of \$16,500; settlement administration costs of \$9,500 to Phoenix; a class representative service award of \$10,000 to Plaintiff; and the PAGA allocation of \$12,000, of which \$9,000 is payable to the LWDA and \$3,000 to the Aggrieved Employees. The court approves East Bay Community Law Center as the *cy pres* recipient of any unclaimed funds.

The court sets a compliance hearing for June 30, 2027 at 2:30 p.m. in Department 19. No later than June 15, 2027, Plaintiff shall file a declaration from the settlement administrator

reporting on the distribution of the settlement funds and providing a final accounting. Plaintiff shall prepare a proposed judgment and order in accordance with California Rules of Court, rule 3.769(h) and rule 3.1312.

- oo0oo -

Calendar Line 4

Case Name: *Sharon Kachadoorian v. Equity Residential Management, L.L.C. et al.*

Case No.: 25CV460326

This is a putative class action arising from alleged violations of the City of Milpitas Rent Review Ordinance, Chapter 2, Article XII of the Milpitas Municipal Code (the “Rent Review Ordinance” or “Ordinance”). In the operative Second Amended Complaint (“SAC”) against defendants Equity Residential Management, L.L.C., Equity Residential, and EQR-Fresca 2009 Limited Partnership (collectively, “Equity”), and Vanessa Ramirez (together with Equity, “Defendants”), plaintiff Sharon Kachadoorian (“Plaintiff”) alleges that Defendants, in connection with lease renewals and rent increases at the Mill Creek Apartments in Milpitas, failed to provide tenants the notices and disclosures required by the Ordinance, including notice of the availability of rent review and written statements of the reasons for rent increases exceeding five percent. The SAC alleges two causes of action, for violation of the Ordinance’s notice requirements and for violation of the Unfair Competition Law, Business and Professions Code section 17200 et seq. (“UCL”).

Plaintiff moves, without opposition, for preliminary approval of a class action settlement, conditional certification of a settlement class, appointment of the class representative and class counsel, appointment of the settlement administrator, and approval of the form and manner of class notice. As discussed below, the court GRANTS the motion for preliminary approval, VACATES the Case Management Conference set for September 16, 2026, and sets a final approval hearing for June 30, 2027 at 1:30 p.m. in Department 19.

I. Legal Standard

A trial court reviews and approves a proposed class action settlement in two steps. At the first step, the court makes a preliminary determination of the fairness, adequacy, and reasonableness of the settlement, and if the settlement warrants it, directs that notice be given to the class members of a final approval hearing at which they may object. (Cal. Rules of Court, rule 3.769(c)–(g).) At the preliminary approval stage, the court assesses whether the proposed settlement is within the range of possible approval, such that there is reason to notify the class members of the proposed settlement and to proceed with a fairness hearing. (7-*Eleven Owners for Fair Franchising v. The Southland Corp.* (2000) 85 Cal.App.4th 1135, 1151 (7-*Eleven Owners*).)

“In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235 (*Wershba*), disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The most important factor is the strength of the plaintiff’s case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130 (*Kullar*).) The court must be provided with information sufficient to allow it to understand the amount in controversy and the realistic range of outcomes of the litigation, so that it may assess the reasonableness of the settlement. (*Id.* at pp. 128, 130; *Munoz v. BCI Coca-Cola Bottling Co. of Los Angeles* (2010) 186 Cal.App.4th 399, 409.) A presumption of fairness exists where the settlement is reached through arm’s-length bargaining, investigation and discovery are sufficient to allow counsel and the court to act intelligently, counsel is

experienced in similar litigation, and the percentage of objectors is small. (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1802 (*Dunk*).)

II. Discussion

A. Provisions of the Settlement

The settlement has been reached on behalf of the following settlement class:

All individuals who signed a lease with Defendants at the Mill Creek Apartments, located at 440 Dixon Landing Rd, Milpitas, California, and who either (a) received and/or responded to a rent renewal notice between March 4, 2021 and the date the Parties' full-length Settlement Agreement was signed, and/or (b) experienced a rent increase that went into effect between March 4, 2021 and May 2, 2023.

(Declaration of Christian Schreiber ("Schreiber Decl."), Ex. 1 ("Agreement"), § 1.4.) The Agreement was fully executed on June 22, 2026. (Schreiber Decl., ¶ 24.) The Agreement states the parties identified 696 potential class members, while further review of Equity's records confirmed that 671 individuals fall within the class definition and are eligible for payment under the allocation methodology. (Agreement, § 10.1; Schreiber Decl., ¶ 29.)

Equity will pay a non-reversionary gross settlement amount of \$1,000,000. (Agreement, §§ 4.1, 5.2.) The gross settlement amount includes a class representative service award of up to \$15,000; attorney's fees of not more than one-third of the gross settlement amount (\$333,333) and litigation expenses of not more than \$30,000; and the settlement administrator's expenses of not more than \$25,000. (*Id.* at §§ 4.2(a)-(c), 1.3.) After these deductions, the estimated net settlement amount available for distribution to class members is approximately \$627,000. (Schreiber Decl., ¶ 45.) No portion of the gross settlement amount will revert to Defendants. (Agreement, § 5.2.)

Individual class member payments will be calculated under an allocation methodology proposed by Plaintiff and subject to court approval. (Agreement, § 5.3(a).) The methodology allocates the net settlement amount among three groups corresponding to different categories of alleged violation or harm. The Ordinance group consists of 99 class members with a qualifying renewal-related event between March 4, 2023 and May 1, 2023, and is allocated \$284,849.74, or approximately one month's rent for each qualifying member (an average of approximately \$2,877.27). The Notice group consists of 670 Class members and is allocated \$100 per member, for a total of approximately \$67,000. The Restitution group consists of 362 Class members and is allocated the remaining approximately \$275,150.26, for an average payment of approximately \$760.08. A class member who qualifies for more than one group will receive the payment assigned to each applicable group, so that a member of all three groups is estimated to receive an average total payment of approximately \$3,737.35. (Motion, pp. 16–19; Schreiber Decl., ¶¶ 40–45.)

This is not a claims-made settlement. Class members are not required to submit a claim to receive payment. If a class member takes no action, the settlement administrator will issue payment by electronic payment through PayPal or Venmo to the account associated with the Class member's email address. A Class member may instead elect to receive payment by paper check sent by first-class mail. (Agreement, §§ 5.3(b)–(e); Motion, pp. 6–7.)

The Agreement provides that electronic payments that remain unclaimed after specified periods, and checks that remain unclaimed 120 days after distribution, will be transmitted to a *cy pres* beneficiary, subject to court approval. (Agreement, §§ 5.3(c)–(e).) The proposed *cy pres* recipient is the California State Bar’s Greg E. Knoll Justice Gap Fund, which allocates funds to legal aid organizations that provide free civil legal services to low-income Californians. (Schreiber Decl., ¶ 50; Declaration of Daniel “Sparky” Abraham (“Abraham Decl.”), ¶ 24.) A *cy pres* distribution to nonprofit organizations providing civil legal services to the indigent is consistent with Code of Civil Procedure section 384. Class counsel represent that they have no financial interest in, or personal conflict relating to, the proposed recipient. (Schreiber Decl., ¶ 50; Abraham Decl., ¶ 24.) The court approves the *cy pres* designation.

In exchange for the settlement, class members who do not opt out will release the Released Parties from all claims arising out of or reasonably related to the facts alleged in the action, including claims relating to rent increase notices, rent renewal notices, the failure to provide notices required by the Ordinance, and rent increases implemented during the class period, whether brought under the Ordinance, the UCL, or any other federal, state, or local law based on the same factual predicate. The release does not encompass claims for personal injury, property damage, or civil rights violations. (Agreement, § 7.3; Motion, p. 8.) The release is appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

The Agreement also provides prospective non-monetary relief. Equity has agreed that, no later than 30 days after the effective date, all notices it issues under the Rent Review Ordinance will include a statement of the reason or reasons for the rent increase, in the same language or languages as the rest of the notice. (Agreement, § 6.1; Motion, p. 6.) The court appoints CPT Group, Inc. as the settlement administrator. (Agreement, § 9.1.)

B. Fairness of the Settlement

The settlement was reached after contested litigation and arm’s length negotiation. Defendants demurred to the First Amended Complaint and moved to strike, and on March 5, 2026 the court (Judge Zayner) sustained the demurrer with leave to amend. (Agreement, § 2.3; Schreiber Decl., ¶¶ 17, 22.) The parties thereafter participated in two mediation sessions before the Hon. Lynn Duryee (Ret.) of JAMS, an experienced neutral, on March 26, 2026 and April 21, 2026, followed by negotiation of the long-form Agreement. (Schreiber Decl., ¶¶ 19–24.) Before agreeing to mediate, Plaintiff obtained informal discovery, including exemplar lease agreements, exemplar renewal and rent increase notices, and lease-level data for the entire Class, and Equity provided a sworn declaration from a knowledgeable company official confirming its notice practices, subject to confirmatory discovery. (Schreiber Decl., ¶¶ 25–30; Motion, pp. 4–5.) Both sides were represented by experienced counsel. These circumstances support a presumption of fairness. (*Dunk, supra*, 48 Cal.App.4th at p. 1802.)

The settlement also reflects a reasonable evaluation of the litigation risks. Defendants deny liability, contend they complied with all applicable laws, and assert defenses that they contend could eliminate or substantially reduce any recovery. (Schreiber Decl., ¶ 32.) Plaintiff faces particular risk on her Ordinance claim, including arguments that she cannot establish a statutory violation and that certain claims are barred or limited by the applicable limitations period, and on her UCL claim, on which damages are unavailable and Plaintiff would need to prove entitlement to restitution or injunctive relief through common evidence. (Schreiber

Decl., ¶¶ 33–34; Motion, pp. 9–10.) Judge Zayner’s prior order sustaining the demurrer to the earlier pleading confirms that continued litigation would involve uncertainty. (Agreement, § 2.3.) Weighed against these risks, the Settlement provides certain and substantial monetary relief now, together with prospective relief addressing one of the alleged notice deficiencies at the center of the Action.

Plaintiff’s papers describe the potential classwide exposure by group. Plaintiff estimates the maximum statutory recovery for the Ordinance group, based on treble one month’s rent, at approximately \$854,549.22, and the potential statutory penalty recovery for the Notice group, based on 1,385 potential violations at \$200 to \$400 per violation, at between approximately \$277,000 and \$554,000. (Motion, pp. 16–17; Schreiber Decl., ¶¶ 41–42.) Measured against these figures, and in light of the litigation risks described above, the \$1,000,000 non-reversionary Gross Settlement Amount is within the range of possible approval, consistent with the principle that a settlement need not approach the full measure of potential recovery to be fair and reasonable. (*Wershba, supra*, 91 Cal.App.4th at pp. 246, 250.) For purposes of preliminary approval, the court is satisfied that the settlement falls within the range of possible approval and that notice to the Class is warranted. The court notes, however, that the moving papers present maximum exposure figures by group but limited risk-adjusted valuation, and Plaintiff should be prepared to provide a fuller showing of the amount in controversy and the realistic range of outcomes, as contemplated by Kullar, in support of final approval. (*Kullar, supra*, 168 Cal.App.4th at pp. 128, 130.)

C. Service Award, Fees and Costs

Plaintiff will seek a class representative service award of up to \$15,000, which represents approximately 1.5 percent of the gross settlement amount. (Agreement, § 4.2(a); Motion, pp. 6, 21–22.) The court is inclined to approve a service award in an amount to be determined at the final approval hearing, based on Plaintiff’s documented participation in the Action. Class counsel will seek attorney’s fees of not more than one-third of the gross settlement amount and litigation expenses of not more than \$30,000. (Agreement, § 4.2(b); Motion, p. 7.) The requested fee matches the one-third benchmark that California courts commonly apply, and the court will determine the reasonableness of the fee at the final approval hearing, with the assistance of a lodestar cross-check. Prior to the final approval hearing, class Counsel shall submit lodestar information, including hourly rates and hours worked, sufficient to support the requested fee, as well as evidence of actual litigation expenses incurred and settlement administration costs. The settlement administrator’s expenses are capped at \$25,000 absent a showing of good cause and court approval. (Agreement, § 4.2(c).)

D. Conditional Certification of Class

Plaintiff requests that the class be conditionally certified for settlement purposes. Code of Civil Procedure section 382 authorizes certification of a class when the question is one of a common or general interest, of many persons, or when the parties are numerous and it is impracticable to bring them all before the court. A class is properly certified where there is an ascertainable class and a well-defined community of interest, and where class treatment is superior to alternative proceedings. (*Brinker Rest. Corp. v. Super. Ct.* (2012) 53 Cal.4th 1004, 1021.) The numerosity requirement is satisfied because the Settlement Class consists of 671 individuals, making joinder impracticable. (Motion, p. 12.)

The class is ascertainable because membership is determined by objective criteria reflected in Equity's records, which identify who signed leases at the Mill Creek Apartments, who received rent renewal notices during the class period, and who experienced qualifying rent increases, and which contain the information needed to calculate payments under the allocation methodology. (Motion, pp. 12–13; *Noel v. Thrifty Payless, Inc.* (2019) 7 Cal.5th 955, 986 [reference to official records is one way but not the only way to show an ascertainable class].)

A well-defined community of interest exists. Plaintiff's claims are typical of the class because, like absent class members, she leased at the Mill Creek Apartments, received renewal and rent increase communications, and alleges that Defendants failed to provide the notices and explanations required by the Ordinance. Common questions predominate because the challenged practices were standardized and can be evaluated through Defendants' common documents, records, and practices, including whether Defendants' notices complied with the Ordinance and whether Class members are entitled to relief. Plaintiff and class counsel have no interests adverse to the class and have prosecuted the action vigorously, so the adequacy requirement is met. (Motion, pp. 13–15; Schreiber Decl., ¶ 47.)

Class treatment is superior to individual adjudication because it will avoid repetitive litigation of relatively small, highly similar claims and provide a method of redress that might otherwise be uneconomical to pursue. (Motion, pp. 15-16.) The court finds that the requirements for certification of a settlement class are satisfied for settlement purposes only and conditionally certifies the settlement class defined above. The court appoints Sharon Kachadoorian as class representative and appoints Christian Schreiber and Estefania Palacios of Olivier & Schreiber PC and Daniel "Sparky" Abraham of Jubilee Legal as class counsel, in each case for purposes of settlement only. Because certification is for settlement purposes only, the Parties' stipulation to certification has no bearing on whether a class would be certified for litigation. (Agreement, § 3.1.)

E. Class Notice

California Rules of Court, rule 3.769, subdivision (f), provides that notice of the final approval hearing must be given to the class members in the manner specified by the court, and that the notice must contain an explanation of the proposed settlement and the procedures for class members to follow in filing written objections and in arranging to appear at the settlement hearing. A class notice is adequate if it fairly apprises class members of the terms of the proposed settlement and of the options open to them. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1390; *7-Eleven Owners*, *supra*, 85 Cal.App.4th at p. 1164.)

The proposed notice plan uses an email short form notice and a long form notice available on a settlement website. (Agreement, §§ 9.4–9.9, Ex. A.) The settlement administrator will send the short form notice by email to all persons identified in the class data, and will re-send by first-class mail any notice returned as undeliverable. The notice describes the lawsuit, the settlement, the estimated individual class member payment, the requested attorney's fees and class representative service award, and the procedures and deadlines for electing a form of payment, requesting exclusion, and objecting. Class members have 60 days from the emailing of the notice to request exclusion or to object. The administrator will maintain a settlement website with English and Spanish options, an email address, and a toll-free number. (Agreement, §§ 1.31, 9.4–9.9.) The form and content of the notice are generally adequate, subject to the modifications set forth below.

The notice is approved on the condition that the parties make the following modifications before the notice is disseminated. First, the parties shall complete all bracketed placeholders in the notice, including the applicable dates, dollar amounts, settlement website address, and the settlement administrator's contact information. Second, the parties shall insert the date, time, and location of the final approval hearing, and shall confirm that the hearing location and department stated in the notice are consistent with the court's order. Third, the notice shall be conformed to the operative class definition, including by replacing the "[DATE AGREEMENT SIGNED]" placeholder with June 22, 2026 and by using a consistent rent-increase end date of May 2, 2023 in the class definition. Fourth, the following language regarding the final approval hearing shall be added to the notice:

Class members may appear at the final approval hearing in person or remotely using the link for Department 19, and should review the remote appearance instructions beforehand:

<https://santaclara.courts.ca.gov/online-services/remote-hearings>

Class members who wish to appear remotely are encouraged to contact class counsel at least three days before the hearing, if possible, so that potential technology or audibility issues can be avoided or minimized.

On the condition that the Parties make the above modifications to the notice prior to its dissemination, the notice is approved.

III. Conclusion

The court GRANTS the motion for preliminary approval of the class action settlement, VACATES the Case Management Conference set for September 16, 2026, and sets a final approval hearing for June 30, 2027 at 1:30 p.m. in Department 19. For settlement purposes only, the court conditionally certifies the Class defined above, appoints Sharon Kachadoorian as Class Representative, and appoints Christian Schreiber and Estefania Palacios of Olivier & Schreiber PC and Daniel "Sparky" Abraham of Jubilee Legal as Class Counsel, and appoints CPT Group, Inc. as settlement administrator. The court approves the class notice subject to the modifications set forth in Part II.E and sets a final approval hearing for June 30, 2027 at 1:30 p.m. in Department 19.

Plaintiff shall file the motion for final approval along with supporting documentation no later than 15 court days before the final approval hearing, unless the court orders otherwise.

Plaintiff shall prepare the order.

- oo0oo -

Calendar Lines 5-6**Case Name:** *Rodolfo Bobadilla v. MobileOne, LLC***Case No.:** 26CV486054

Defendant MobileOne LLC (“MobileOne” or “Defendant”) moves to compel Plaintiff Rodolfo Bobadilla (“Plaintiff”) to arbitrate his individual wage and hour claims, to dismiss his class allegations, and to stay any representative claims pending arbitration. Defendant separately moves to seal a single item of information, Plaintiff’s Internet Protocol (“IP”) address, appearing in four places in Defendant’s moving papers.

For the reasons stated below, the court CONTINUES the hearing on the motion to compel arbitration to December 2, 2026 at 1:30 p.m. in Department 19. The sole genuinely contested question presented by the motion is one of contract formation—namely, whether Plaintiff electronically signed the Mutual Arbitration Agreement that Defendant seeks to enforce. The present record does not permit the court to determine by a preponderance of the evidence that any electronic signature of the arbitration agreement was the act of Plaintiff. Rather than deny or grant the motion on the current record, the court will continue the hearing to allow Defendant to submit supplemental declarations, and to allow both sides to submit supplemental briefing, directed to the specific unresolved questions identified in Part II.C below. The court GRANTS the motion to seal as set forth in Part III.

I. Background**A. The Action**

Plaintiff filed this putative wage and hour class and representative action on February 3, 2026. The Complaint alleges nine causes of action arising from Plaintiff’s employment with MobileOne, a premium T-Mobile retailer: (1) failure to provide meal periods; (2) failure to provide rest periods; (3) failure to pay hourly wages and overtime; (4) failure to pay proper sick pay; (5) unlawful collection or receipt of wages; (6) failure to timely pay all final wages; (7) failure to indemnify; (8) violation of the Unfair Competition Law (Bus. & Prof. Code, § 17200 et seq.); and (9) civil penalties under the Private Attorneys General Act (“PAGA”). (Motion, pp. 12:17–22; Declaration of Alissa Pleau-Fuller, ¶ 3, Ex. 1.) MobileOne employed Plaintiff as a non-exempt hourly employee at one of Defendant’s locations from approximately May 2024 to August 2024. (Declaration of Rodolfo Bobadilla (“Bobadilla Decl.”), ¶ 2.)

B. The Arbitration Agreement and the Onboarding Records

Defendant contends that, as part of his new-hire onboarding, Plaintiff electronically signed a document entitled “Mutual Agreement to Arbitrate” on May 28, 2024. (Motion, p. 7:8–25; Declaration of Kelli Jensen (“Jensen Decl.”), ¶¶ 22–28.) The agreement, if formed, provides for final and binding arbitration before a neutral arbitrator under the JAMS Employment Arbitration Rules of “any and all disputes, controversies or claims” arising from Plaintiff’s employment, expressly recites that it is governed by the Federal Arbitration Act (“FAA”), and contains a class, collective, and representative action waiver. (Jensen Decl., Ex. C, §§ 2–6.)

Defendant supplies its onboarding evidence through two declarations. Kelli Jensen, MobileOne’s Director of Human Resources, describes MobileOne’s use of the third-party Paycor “Perform Onboarding” portal and states that Paycor’s business records reflect that

Plaintiff electronically signed the arbitration agreement. (Jensen Decl., ¶¶ 7–28.) Leonard Hollowell, a Principal Software Engineer at Paycor, describes how the Perform Onboarding portal works and states that, “[b]ased on Paycor’s business records, someone using Mr. Bobadilla’s username and password . . . electronically signed MobileOne’s Arbitration Agreement on May 28, 2024 at 17:08:11.987 UTC from the IP address [redacted].” (Declaration of Leonard Hollowell (“Hollowell Decl.”), ¶ 28.) Seventeen hours, eight minutes, and eleven seconds UTC corresponds to 10:08 a.m. Pacific Daylight Time. (See Opposition, p. 12:11–17.)

Importantly, the copy of the arbitration agreement attached to the Jensen Declaration as Exhibit C does not bear Plaintiff’s signature or any electronic signature stamp. (Jensen Decl., ¶ 29; Opposition, p. 8:16–25.) Defendant explains that the arbitration agreement was uploaded to the Paycor portal as a “read-only, password protected” document, so that the system was prevented from applying the signature stamp to the face of the document, even though (according to Defendant) the underlying audit data reflect that Plaintiff clicked “Sign & Continue.” (Jensen Decl., ¶¶ 29–30; Hollowell Decl., ¶ 27.) By contrast, two other onboarding documents, the Employee Handbook (Jensen Decl., Ex. A) and the Cyber-Security Policy and Acknowledgment (*id.* at Ex. E), do bear visible electronic signature stamps. Those stamps reflect signatures by “Rodolfo Bobadilla (bobadillarudy)” on May 28, 2024, at 1:05:44 p.m. and 1:06:08 p.m., respectively, each from IP address [redacted]. (Jensen Decl., ¶¶ 21, 27 & Exs. A, E.) Defendant relies on the common IP address and the temporal proximity of these documents to argue that Plaintiff also signed the arbitration agreement. (Motion, pp. 16:23–17:6; Jensen Decl., ¶ 27.)

C. The June 3, 2026 Order and Arbitration-Related Discovery

At the June 3, 2026 case management conference, this court (Judge Zayner) lifted the stay on discovery “solely for the limited purpose” of allowing discovery as to the petition to compel arbitration. (June 3, 2026 Minute Order.) Pursuant to that order, Plaintiff propounded discovery and took the deposition of Defendant’s person most knowledgeable, Jensen, on August 26, 2026. (Declaration of David Arakelyan, ¶¶ 2–4 & Ex. 1.) Plaintiff’s opposition relies substantially on that deposition testimony. (Opposition, pp. 4:24–7:4, 12:9–14:25.)

D. The Present Motions to Compel and to Seal

Defendant moves to compel arbitration of Plaintiff’s individual claims, to dismiss the class allegations pursuant to the class waiver, and to stay the representative PAGA claims pending arbitration. (Motion, p. 21:23–27.) Plaintiff opposes solely on the ground that no agreement was ever formed, contending that he did not sign the arbitration agreement and that Defendant cannot authenticate the electronic signature it attributes to him. (Opposition, p. 1:2–16.) Plaintiff does not contend that the agreement is unconscionable and raises no defense other than the absence of a valid agreement. In reply, Defendant contends that its contemporaneous electronic records establish execution, that Plaintiff’s inability to recall signing does not rebut that evidence, and that the apparent timing discrepancy Plaintiff identifies is an artifact of the different time zones in which the various records are stamped. (Reply, pp. 2:3–10, 6:12–7:14.) Plaintiff also filed evidentiary objections to the Jensen and Hollowell declarations, and Defendant filed a response. Defendant separately moves to seal Plaintiff’s IP address. Plaintiff did not oppose the Motion to Seal.

II. Defendant's Motion to Compel Arbitration

A. Legal Standard

A party moving to compel arbitration bears the burden of proving, by a preponderance of the evidence, the existence of a valid agreement to arbitrate. (Code Civ. Proc., § 1281.2; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413 (*Rosenthal*)). Because arbitration is a matter of contract, “a party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) Whether an agreement to arbitrate was formed is decided by the court, applying ordinary state law principles of contract formation, and it is decided the same way whether or not the agreement recites that it is governed by the FAA. (*Ibid.*) When the material facts are disputed, the court sits as a trier of fact, weighing the declarations, documentary evidence, and in its discretion, any oral testimony, to reach a final determination. (*Rosenthal, supra*, 14 Cal.4th at pp. 413–414.)

California courts apply a three-step, burden-shifting analysis to a motion to compel arbitration that turns on the authenticity of a signature. First, the moving party bears the initial burden of producing prima facie evidence of a written agreement to arbitrate, which it can meet by attaching a copy of the agreement purportedly bearing the opposing party's signature. Second, if the opposing party challenges the authenticity of the signature, the burden shifts to that party to produce evidence sufficient to create a factual dispute as to authenticity. Third, if the opposing party does so, the burden shifts back to the moving party to establish, by a preponderance of the evidence, that the signature is authentic, that is, that it was the act of the opposing party. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164–166 (*Gamboa*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060 (*Espejo*); *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842–846 (*Ruiz*)).

Where the signature at issue is an electronic signature, the Uniform Electronic Transactions Act supplies the governing rule of attribution. An electronic signature is attributable to a person “if it was the act of the person,” a fact that “may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.” (Civ. Code, § 1633.9, subd. (a).) A moving party seeking to authenticate an electronic signature over the signatory's denial must do more than summarily assert that the person signed; it must explain the process by which the electronic signature was placed on the document and how that process, and the security measures used, establish that the signature was the act of that person. (*Ruiz, supra*, 232 Cal.App.4th at pp. 843–846; *Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 545–547.)

B. Discussion

1. No Dispute Regarding Governing Law and Scope

If a valid agreement was formed, several of the questions briefed by the parties would not be difficult. The arbitration agreement recites that it is governed by the FAA and that Plaintiff's employment affects interstate commerce (Jensen Decl., Ex. C, § 4), and Plaintiff does not dispute that MobileOne's operations, as a multistate T-Mobile retailer, involve

interstate commerce (Motion, p. 14:12–21; Jensen Decl., ¶ 3). The agreement expressly covers “any and all disputes, controversies or claims” that arise from the employment relationship, so it encompasses Plaintiff’s Labor Code and derivative claims. (Jensen Decl., Ex. C, § 2.) Plaintiff has not argued that the agreement is procedurally or substantively unconscionable; his opposition raises no unconscionability defense at all. The Court therefore does not need to reach Defendant’s unconscionability, severability, class-waiver, or PAGA-stay arguments (Motion, pp. 15:19–21:22) because each of these issues presupposes that an agreement was formed, and that threshold question represents the only genuine dispute.

2. Whether Plaintiff Signed

The entire dispute reduces to contract formation. Defendant contends that Plaintiff electronically signed the arbitration agreement during his onboarding on May 28, 2024. (Motion, p. 7:8–25.) Plaintiff declares that he does not recall being presented with, reviewing, or signing any arbitration agreement, that he has no memory of affixing an electronic signature to the document, and that he did not set up an electronic signature in Paycor. (Bobadilla Decl., ¶¶ 19, 21–22.) Because the enforceability of the agreement turns entirely on whether Plaintiff signed it, the three-step framework of *Gamboa*, *Espejo*, and *Ruiz* governs.

3. Defendant’s Initial Showing

The fact that Exhibit C to the Jensen Declaration does not display Plaintiff’s signature complicates Defendant’s initial showing. The ordinary way for a moving party to meet its initial burden is to attach a copy of the agreement “purportedly bearing the opposing party’s signature.” (*Espejo*, *supra*, 246 Cal.App.4th at p. 1060.) Here, in place of a signed copy, Defendant offers the declarations of Jensen and Hollowell, which describe the Paycor onboarding process and assert, based on Paycor’s business records, that someone using Plaintiff’s unique credentials clicked “Sign & Continue” on the arbitration agreement on May 28, 2024. (Jensen Decl., ¶¶ 24–30; Hollowell Decl., ¶¶ 27–28.) The Court will assume, for purposes of this preliminary decision, that this showing is sufficient to satisfy Defendant’s comparatively modest initial burden of production. Even on that assumption, however, the motion cannot presently be granted, for the reasons that follow.

4. Plaintiff Has Produced Evidence Challenging Authenticity

Plaintiff has done more than deny his signature in conclusory terms. His declaration and the deposition testimony he elicited from Defendant’s person most knowledgeable place several specific facts in dispute. Plaintiff declares under oath that he did not have access to Paycor on May 28, 2024, that he had no way to set up a username or password at that time, that his supervisor had to clock him in and out manually because he lacked access, and that the first time he was able to access Paycor was May 31, 2024, after he reset his password using a reset email that Paycor sent him at 11:29 a.m. that day. (Bobadilla Decl., ¶¶ 14, 17, Ex. C.) If credited, this testimony would mean that Plaintiff could not have signed anything on Paycor on May 28, 2024. Under *Ruiz* and *Bannister*, a signatory’s sworn statement that he did not sign, or does not recall signing, is sufficient to shift the burden back to the proponent of the agreement to prove authenticity by a preponderance of the evidence. (*Ruiz*, *supra*, 232 Cal.App.4th at pp. 843–846; *Bannister*, *supra*, 64 Cal.App.5th at pp. 545–547; see Opposition 9:8–10:7.) Here, the burden has shifted back to Defendant.

5. The Present Record Does Not Establish Authenticity, and Specific Questions Remain Unresolved

On the current record, the court cannot find by a preponderance of the evidence that the electronic signature on the arbitration agreement was the act of Plaintiff. Nevertheless, the remaining deficiencies appear to be curable. Defendant has presented substantial evidence: it points to unique login credentials known only to the employee, a common IP address shared by the arbitration agreement and two visibly signed documents, audit data reflecting a signing event tied to Plaintiff's username and personal email address, and the declarations of Jensen and Hollowell describing Paycor's onboarding and recordkeeping. In reply, Defendant has also come forward with explanations for the principal points raised by Plaintiff. But the record still lacks competent evidence placing those explanations on a foundation the court can weigh because several of those explanations currently rest on attorney argument or on deposition testimony that was qualified by the witness. At best, Defendant's reply presentation constitutes an offer of proof rather than actual proof.

The timing discrepancy presents the clearest example of the unresolved questions. Plaintiff argued that the arbitration agreement, supposedly signed at 10:08 a.m. Pacific on May 28, 2024 (Hollowell Decl., ¶ 28), was executed roughly three hours before the Employee Handbook and Cyber-Security Policy, which bear visible 1:05 p.m. and 1:06 p.m. timestamps (Jensen Decl., ¶¶ 21, 27, Exs. A, E), even though Jensen testified that the arbitration agreement follows the handbook in the onboarding sequence and that documents cannot be skipped (Opposition, pp. 5:1–12, 12:17–13:6). In reply, Defendant explains that the discrepancy is an artifact of different time zones: the visible stamps on the handbook and cyber-security policy are Eastern-time entries, corresponding to approximately 10:05 a.m. and 10:06 a.m. Pacific, while the arbitration agreement's 17:08 UTC backend entry corresponds to 10:08 a.m. Pacific. (Reply 7:8–14, 10:10–19, citing Jensen Depo., pp. 167:22–168:25, 183:7–184:5.) If established and accepted, that explanation would resolve the discrepancy, placing the three documents within minutes of one another and in the correct sequence. But the explanation presently rests on Jensen's deposition testimony. As Plaintiff points out, when first asked, Jensen did not know whether the visible stamps were in Pacific time and stated that she had to confer with Paycor. (Opposition, pp. 8:1–4, 13:1–6.) A competent declaration confirming the time-zone basis of each stamp would allow the court to weigh this explanation.

As to several related matters, Defendant has similarly offered plausible explanations but has failed to support them by competent evidence on the record. Defendant explains that Plaintiff's May 31, 2024 password reset shows only that a reset occurred, not that no account existed earlier, and points to Plaintiff's admission that he received a Paycor link on May 15, 2024 (Reply, pp. 6:19–7:7; Bobadilla Decl., ¶ 8); but Defendant has not produced the account-creation and first-login records that would show when Plaintiff first accessed the portal. Defendant explains that the countersignature of MobileOne's then-HR Director (Nicollette Filippone) was already contained in the source arbitration agreement furnished through the system, rather than added after Plaintiff signed (Reply 5:13–16), but Defendant presents explanation as argument rather than through a declaration. Neither declaration attaches the underlying Paycor audit-trail record for the arbitration-agreement transaction itself. The timecards upon which Jensen relies (Jensen Decl., ¶ 28) were not produced (Opposition, p. 6:6–13). Similarly, the explanation for why the signature stamp does not appear on Exhibit C still rests in part on a June 6, 2025 email from a Paycor representative, Andrea Holbrook,

who has not submitted a declaration (Jensen Decl., ¶ 30, Ex. F). Each of these is a matter that a focused supplemental submission can address.

Given that the motion turns on a factual question that the court must resolve as a trier of fact, that Defendant's showing is substantial, and that the remaining deficiencies are specific and appear to be curable, the court concludes that the appropriate course is to continue the hearing to permit Defendant to complete the record and to permit both sides to be heard on it, rather than either to deny the motion or to grant it on the present record. (See *Rosenthal*, *supra*, 14 Cal.4th at pp. 413–414 [court resolves disputed facts on the petition to compel, and may receive evidence]; *Espejo*, *supra*, 246 Cal.App.4th at pp. 1060, 1062 [authenticating declaration properly considered on reply].) The court retains the discretion, if material facts remain genuinely disputed after the supplemental submissions, to set the matter for an evidentiary hearing with live testimony. (Code Civ. Proc., § 1281.2; *Rosenthal*, *supra*, 14 Cal.4th at pp. 413–414.)

C. Disposition: The Motion to Compel Is Continued for Supplemental Declarations and Briefing

The hearing on the Motion to Compel Arbitration is CONTINUED to December 2, 2026 at 1:30 p.m. in Department 19. Defendant may file and serve supplemental declarations, and each party may file and serve supplemental briefing, addressing the following specific questions. While the court identifies the questions below to focus the supplemental record, it does not dictate how any of them should be resolved. As to each, Defendant has in most instances already offered an explanation in its reply, but the court seeks competent evidence, as opposed to argument, upon which it can weigh those explanations.

- (1) **Time zones and sequence.** Defendant should submit a competent declaration, from a Paycor witness or other person with personal knowledge, confirming the time-zone basis of each of the relevant timestamps, that is, the visible signature stamps on the Employee Handbook (1:05 p.m.) and Cyber-Security Policy (1:06 p.m.) and the backend 17:08 UTC entry for the arbitration agreement, and reconciling those times so as to establish the order in which the documents were signed.
- (2) **Account creation and first access.** When did Plaintiff first create his Paycor account and first log in? Defendant should submit competent evidence, such as the account creation and first-login audit records and the password reset history, addressing Plaintiff's sworn testimony that he had no access to Paycor until May 31, 2024, when he reset his password following a reset email sent at 11:29 a.m. that day (Bobadilla Decl., ¶¶ 14, 17, Ex. C).
- (3) **The audit trail for the arbitration agreement.** Neither declaration attaches the underlying Paycor audit trail for the arbitration agreement itself—that is, the record capturing the unique User ID, timestamp, IP address, and “Sign & Continue” event for that specific document. Defendant should submit that record, authenticated by a Paycor witness, as it effectively did for the handbook and cyber-security policy.

- (4) **The IP address.** Defendant should provide a competent declaration regarding the connection between the subject IP address, the device associated with it, and Plaintiff. In particular, Defendant should address whether that IP address was assigned to Plaintiff's own device or instead to a MobileOne store location or other shared device or network, and explain how the common IP address bears on whether the signing was the act of Plaintiff.
- (5) **The timecards.** Defendant should submit Plaintiff's timecards or underlying time records for May 28 and May 31, 2024, which Jensen's declaration relies upon (Jensen Decl., ¶ 28) but which were not produced in discovery.
- (6) **The read-only condition and the countersignature.** Defendant should submit a declaration from a Paycor witness with personal knowledge explaining the "read-only, password protected" condition that Defendant says prevented the signature stamp from appearing on Exhibit C, in place of the June 6, 2025 Holbrook email on which Defendant currently relies (Jensen Decl. ¶ 30, Ex. F). Defendant should also support, with evidence rather than argument, its reply position that Filippone's countersignature was already contained in the source arbitration agreement furnished through the system (Reply 5:13-16), and reconcile that position with Jensen's use of the term "countersigned."

Defendant's supplemental declarations and supplemental brief, if any, shall be filed and served on or before October 21, 2026; Plaintiff's supplemental brief and any responsive evidence shall be filed and served on or before November 6, 2026; and any reply shall be filed and served on or before November 19, 2026.

III. Defendant's Motion to Seal

Defendant moves under California Rules of Court, rules 2.550 and 2.551, to seal a single category of information, Plaintiff's IP address, appearing in four places: paragraph 27 of the Jensen Declaration; the electronic-stamp footer on Exhibit A to the Jensen Declaration; Exhibit F to the Jensen Declaration; and paragraph 28 of the Hollowell Declaration. (Motion to Seal 1:26-2:9.) Defendant has publicly filed redacted versions of these documents, in which only the IP address digits are redacted, and it has conditionally lodged unredacted versions under seal. Plaintiff does not oppose the motion.

A court may order a record sealed only if it makes the express findings required by rule 2.550(d): (1) an overriding interest exists that overcomes the right of public access; (2) the overriding interest supports sealing; (3) a substantial probability exists that the overriding interest will be prejudiced absent sealing; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist. (Cal. Rules of Court, rule 2.550(d); *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1217–1218.) The absence of opposition does not relieve the court of the obligation to make these findings, but on this narrow record the findings are readily supported.

The court finds as follows. Plaintiff has an overriding privacy interest in his personal IP address, a piece of identifying technical information that is unrelated to the merits of the wage and hour claims and whose public disclosure would serve no legitimate public purpose. That interest supports sealing, and there is a substantial probability it would be prejudiced if

the information were disclosed, because once disclosed it cannot be retrieved. The proposed sealing is narrowly tailored: it reaches only the IP address digits, and the documents have already been publicly filed in redacted form with the balance of their content intact. No less restrictive means exist to protect the information, because the only alternative to sealing the digits is their disclosure. The public's interest in access to these documents is fully served by the redacted versions already on file.

Accordingly, the Motion to Seal is GRANTED. The court orders that the unredacted versions of the four identified items be placed under seal, limited to Plaintiff's IP address, consistent with the publicly filed redacted versions.

IV. Plaintiff's Evidentiary Objections

Plaintiff submitted evidentiary objections directed at the Jensen Declaration, the Hollowell Declaration, the Motion and supporting memorandum, and each of the declarations' exhibits. The objections repeat the same set of grounds, virtually verbatim, as to each item: failure to authenticate (Evid. Code, §§ 1400, 1401); hearsay (Evid. Code, § 1200); inadequate business-records foundation (Evid. Code, §§ 1271, subds. (b), (c)); lack of personal knowledge (Evid. Code, § 702); and improper opinion (Evid. Code, § 800). Defendant responded that these are generalized "shotgun" objections that should be disregarded, and that any incompleteness in the records goes to weight rather than admissibility. (See *Jazayeri v. Mao* (2009) 174 Cal.App.4th 301, 321 (*Jazayeri*); *People v. Martinez* (2000) 22 Cal.4th 106, 128, fn. 7.)

The objections to the Motion and its memorandum of points and authorities (objection No. 3) are OVERRULED. A brief is argument, not evidence, and is not a proper subject of an evidentiary objection.

As for the declarations and their exhibits, the blanket objections are OVERRULED for purposes of the present ruling. Jensen, as MobileOne's Director of Human Resources, and Hollowell, as a Principal Software Engineer at Paycor, have each laid a prima facie foundation of personal knowledge and familiarity with the Paycor onboarding system and the manner in which the pertinent records are created and maintained, which is sufficient to permit the court to consider their declarations and the business records they describe. (Evid. Code, §§ 702, 1271.) The point Plaintiff presses—that the records do not, without more, establish that the signing was the act of Plaintiff—goes to the weight of the evidence rather than its admissibility, and it is the subject of Part II above. (*Jazayeri, supra*, 174 Cal.App.4th at p. 321.)

The court does not finally rule on the hearsay objection directed to the June 6, 2025 Holbrook email (Jensen Decl., Ex. F), because it need not resolve that objection in order to continue the motion, and because the court expects that the supplemental submission ordered in Part II.C would supply a competent Paycor declarant in place of the email. (See *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 532-534 [court need not rule on objections not material to its disposition].) The court reserves ruling on any objection that becomes material to the final determination of the motion, and the parties may renew their objections, directed to specific evidence, in connection with the continued hearing.

V. Conclusion and Order

In summary:

1. The court CONTINUES the Motion to Compel Arbitration. The hearing is continued to December 2, 2026 at 1:30 p.m. in Department 19, and the parties are granted leave to file supplemental declarations and briefing addressing the specific questions identified in Part II.C, on the following schedule: Defendant's supplemental declarations and supplemental brief, if any, shall be filed and served on or before October 21, 2026; Plaintiff's supplemental brief and any responsive evidence shall be filed and served on or before November 6, 2026; and any reply shall be filed and served on or before November 19, 2026.
2. The court GRANTS the Motion to Seal as set forth in Part III.

Defendant shall prepare the order.

- oo0oo -